

21PSCV00617 21PSCV00617

County: los-angeles

Division: Civil Law and Motion

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Case Number: 21PSCV00617 Hearing Date: August 13, 2026 Dept: G

Defendants Fleet Capital, Inc., Inco

Builders, and Sam Ostayan's Motion for an Order Awarding Fees and Release of
Plaintiff Diana Culkin's Bond

Respondent:

Plaintiff Diana Culkin

TENTATIVE

RULING

Defendants

Fleet Capital, Inc., Inco Builders, and Sam Ostayan's Motion for an Order
Awarding Fees and Release of Plaintiff Diana Culkin's Bond is GRANTED in a
reduced amount. Defendants Fleet
Capital, Inc., Inco Builders, and Sam Ostayan are AWARDED a total of \$5,635.00.

BACKGROUND

This

is a wrongful foreclosure action. On

July 30, 2021, plaintiff Diana Culkin (Culkin) filed the Complaint. On February 24, 2023, Culkin filed the
operative Second Amended Complaint, alleging causes of action for (1) violation
of California's nonjudicial foreclosure statutes and (2) wrongful foreclosure. (On May 4, 2023, the court sustained a
demurrer without leave to amend and granted a motion to strike affecting all
other causes of action in the Second Amended Complaint.)

On

February 9, 2022, defendant Inco Builders filed the Cross-Complaint, alleging

causes of action for (1) trespass and (2) slander of title.

On

October 29, 2024, the court issued the Judgment in favor of defendants Fleet Capital, Inc., Sam Ostayan, and Inco Builders (collectively, Defendants). On December 16, 2024, Culkin appealed the court's Judgment. On September 22, 2025, the Court of Appeal affirmed the court's Judgment. On December 10, 2025, the Supreme Court declined to review the appeal.

On

February 26, 2026, Culkin filed a "motion to set aside," seeking reconsideration and the vacating of the court's judgment. On April 2, 2026, the court denied the motion to set aside.

On April

9, 2026, Culkin filed a motion to vacate judgment, seeking the same relief based on the substantially similar arguments as the previous motion to set aside. On May 14, 2026, the court declared Culkin a vexatious litigant and required her to post \$5,000.00 bond before it considered the motion. On May 21, 2026, Culkin posted bond. On June 10, 2026, the court denied the motion to vacate judgment.

On

June 16, 2026, Defendants filed this motion for release of bond and fees. On July 14, 2026, Culkin filed the opposition, and on July 15, 2026, the supervising judge permitted the opposition. On August 6, 2026, Defendants filed the reply.

This

motion is set for hearing on August 13, 2026.

ANALYSIS

Defendants

seek the release of Culkin's vexatious litigant bond and attorney's fees based on Culkin's unsuccessful motion to vacate judgment. For the following reasons, the motion is GRANTED in a reduced amount.

Legal

Standard

"[I]f,

after hearing the evidence upon the motion, the court determines that the plaintiff is a vexatious litigant and that there is no reasonable probability that the plaintiff will prevail in the litigation against the moving defendant, [then] the court shall order the plaintiff to furnish, for the benefit of the moving defendant, security in such amount and within such time as the court shall fix." (Code Civ. Proc., § 391.3, subd. (a).) The statute defines "security" as "an undertaking to assure payment, to the party for whose benefit the undertaking is required to be furnished, of the party's reasonable expenses, including attorney's fees and not limited to taxable costs, incurred in or in connection with a litigation instituted, caused to be instituted, or maintained or caused to be maintained by a vexatious litigant." (Code Civ. Proc., § 391, subd. (c).)

Discussion

The

court declared Culkin a vexatious litigant on May 14, 2026 and required her to post \$5,000.00 bond. (See 5/14/2026 Min. Order, p. 1.) The purpose of the bond is to defend against frivolity from a vexatious litigant "for the benefit of the moving defendant." (Code Civ. Proc., § 391.3, subd. (a); see also *Holcomb v. U.S. Bank Nat. Assn.* (2005) 129 Cal.App.4th 1494, 1504, holding, "The vexatious litigant statutes were enacted to require a person found a vexatious litigant to put up security for the reasonable expenses of a defendant who becomes the target of one of these obsessive and persistent litigants whose conduct can cause serious financial results to the unfortunate object of his attack. The purpose of the statutory scheme is to deal with the problem created by the persistent and obsessive litigant. . . .") The court denied the motion to vacate judgment on June 10, 2026. (See 6/10/2026 Min. Order, p. 1.) In denying the motion, the court found that Culkin reasserted previously made allegations of litigation misconduct. Culkin did not base her motion to vacate judgment on "new or different facts, circumstances, or law." (6/10/2026 Order Re: Court's Final Ruling, p. 2, quoting Code Civ. Proc., § 1008, subd. (b).) Thus, the court finds Defendants are entitled to the \$5,000.00 bond under Section 391.3, subdivision (a).

Defendants

also request \$635.00 incurred in opposing the motion to vacate judgment and in connection with this motion for release of bond and fees. (See Mot., p. 1.) However, the court finds that the purpose of the \$5,000.00 bond is to cover Defendants' reasonable expenses, and there is no reason to require Culkin to pay any additional amount where the bond amount sufficiently covers Defendants' expenses.

Thus, the court does not award an additional \$635.00 for attorney's fees.

Therefore,

the motion for release of bond and fees are GRANTED in the reduced amount of \$5,000.00.

CONCLUSION

For

these reasons, the motion for an order awarding fees and release of bond is GRANTED in a reduced amount. Defendants

Fleet Capital, Inc., Inco Builders, and Sam Ostayan are AWARDED a total of \$5,000.00.